

Missing service of notice of confirmation hearing to PR of the estate of Eugene Murphy, the sole heir of this estate. Missing proof of posting of notice of confirmation hearing. Prob.C. § 10308(c).

Missing reappraisal for sale. Prob.C. § 10309(a)(1)–(2). Administrator appears to misread the appraisal by the probate referee which fixes the date-of-death value of the property, not a date-of-appointment value.

Petition to confirm sale of real property (148 Hap Arnold)

Appearance is required for hearing on petition to confirm sale of real property (148 Hap Arnold).

Missing notice of sale. Missing proof of publication of notice of sale. Prob.C. § 10300; see also Prob.C. § 10312. Notice of sale and notice of confirmation hearing are distinct notices and both are required.

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Clarification: administrator requests approval of commissions of nearly 11% of the sale price, without explanation for the unusually high request.

2. S-PR-0012296 In Re the Estate of Donald, Blane Edward

Administrator alleges distributions of the bulk of the estate to himself and to devisee Hunter Donald. No petition for preliminary distribution was ever filed or granted. Administrator had no authority to distribute either real property or cash to any devisee of the estate. It is recommended the court decline to approve all impermissible preliminary distributions. Court determination is needed.

The court has previously determined in adversarial proceedings that reasonable attorney fees for the estate litigation concerning title to the real property was \$25,000. Counsel has declared that the judgment went unpaid and was discharged in bankruptcy. Court determination is needed as to reasonable extraordinary fees.